

WANDSWORTH BOROUGH COUNCIL

LICENSING SUB-COMMITTEE – 29TH JANUARY 2026

Report by the Director of Resident Services as Chief Licensing Officer on an application under the Licensing Act 2003 for a NEW Premises Licence in respect of the premises known as Putney Polish, 379 Upper Richmond Road, London, SW15 5QJ (West Putney).

DETAILS OF APPLICATION

- 1)
 - a) Applicant Sheen Polish Delicatessen LTD
333 Upper Richmond Road West
London
SW14 8QR
 - b) Premises Putney Polish Delicatessen
379 Upper Richmond Road
London
SW15 5QJ
 - c) Application for Premises Licence (copy of which has been provided to the Sub-Committee).
 - d) Proposed licensable activity i) Sale by retail of alcohol;
 - e) Proposed hours of all named licensable activities The proposed hours of operation are laid out in **APPENDIX B**
 - f) Other proposed hours None
 - g) Location A map showing the location of the premises is included in the papers provided to the Sub-Committee.

NEW APPLICATION

- 2) This is an existing business, they are currently operating without the need for a premises licence and the premises have not previously held one.
- 3) Sheen Polish Delicatessen LTD has applied for a new premises licence to allow:
 - a) the sale by retail of alcohol for consumption off the premises from 08.00 hours until 20:00 Monday through Sunday nights.

CONSULTATION

- 4) The responsible authorities have been notified of the application. The applicant has advertised the application, as required, by way of a poster in the window and by advert in a local newspaper. The application has also been advertised on the

Council's website. The Council in its capacity as the Licensing Authority (referred to in the remainder of this report as the Council) can only consider representations if they relate to the promotion of the licensing objectives. The following relevant representations have been received:-

5) Responsible Authorities

- a) Police – The Metropolitan Police have raised concerns that the operating schedule does not properly address the prevention of crime and disorder and have requested the following as conditions:
- i) The need for no single beers, lagers, or ciders above 6% ABV (alcohol by volume) shall be sold at the premises.
 - ii) The need for The Premises Licence Holder to ensure that anyone utilised by the licence holder for the role of delivering alcohol orders ensures that the alcohol is delivered to the client who ordered the alcohol, or ensures that any 'safe place' as designated by the client where the delivery can be left must be in an area not visible to the general public and not where any minor can access the delivery.
 - iii) Alcohol deliveries only to be made to business and/or private residences and not to any public/open spaces.

*Following the submission of this representation, the applicant has amended their application and incorporated the above conditions into the operating schedule. These amendments have addressed the concerns raised by the Police and as a result their representation has been withdrawn. These conditions are set out in **Appendix A** of this report.*

- b) Trading Standards The Trading Standards Officer has raised representations regarding protection of children from harm at the premises and have requested the following conditions:
- i) An effective visual (and/or aural) reminder shall be in place at all points of sale to ensure staff undertake appropriate age checks on potential sales of alcohol (and any other age-restricted product).
 - ii) All staff that undertake the sale or supply of alcohol (and any other age-restricted product) shall receive appropriate refresher training in relation to undertaking appropriate age checks on such, at least every three months.
 - iii) Records of all staff training, relating to the sale or supply of alcohol (and any other age-restricted product), along with any training material used, will be kept and maintained by the Designated Premises Supervisor or the Premises Licence Holder.

*Following the submission of this representation, the applicant has amended their application and incorporated the above conditions into the operating schedule. These amendments have addressed the concerns raised by Trading Standards, and as a result their representation has been withdrawn. These conditions are set out in **Appendix A** of this report.*

- 6) Other Persons – There has been 1 representation made by other persons regarding public nuisance, crime and disorder and protection of children from harm issues.

In terms of public nuisance

- a) From increased number people loitering outside the premises and residential entrance
- b) From bottles and general rubbish left outside by the premises

In terms of protection of children from harm

- a) From access for children to the adjacent residential property

These representations relate to the crime and disorder, public nuisance and the protection of children from harm licensing objectives.

- 7) Copies of all representations have been forwarded to the applicant and have been made available to the Sub-Committee

POINTS OF CLARIFICATION

- 8) The Licensing Act 2003 (Hearings) Regulations 2005 requires that a notice of hearing be sent to the applicant and responsible authorities and other persons who have made relevant representations. This must contain, amongst other matters, the points on which the Council considers that it will want clarification at the hearing. No points of clarification have been sought in respect of this application.

POLICY CONSIDERATIONS

- 9) Licensing Objectives – The Licensing Act 2003 requires the Council to carry out its various licensing functions so as to promote the following licensing objectives:-
- a) the prevention of public nuisance; and
 - b) the protection of children from harm.

- 10) Policy Statement – The Licensing Act 2003 requires the Council to publish a “Statement of Licensing Policy” that sets out the policies that the Council will generally apply to promote the licensing objectives when making decisions on applications made under the Act.

The Council made a number of policy decisions in its Statement of Licensing Policy. The following policy decisions are relevant to this application:-

- a) Part 2 Section 9, paragraph 9.5 - Licensing hours;
- b) Part 2 Section 21 - Public Nuisance;
- c) Part 2 Section 22 - Protection of Children from Harm

Statutory Guidance – In exercising its licensing functions the Council must have regard to the Government’s Statutory Guidance. The following sections are relevant to this application:-

- a) Chapter 1 paragraphs 1.2 – 1.5, 1.9 – 1.10, 1.16, 1.17, 1.18, 1.19;
- b) Chapter 2 paragraphs 2.15 – 2.21 Public Nuisance;
- c) Chapter 2 paragraphs 2.22 – 2.32 Protection of Children from Harm;
- d) Chapter 10 – conditions attached to premises licences and club premises certificates and in particular paragraphs 10.1 – 10.10; 10.11 – 10.12 naming,

packing and promotion in retail premises, 10.13 – 10.14 hours of trading (plus 10.15 if shop, store or supermarket application);

- 11) Copies of the Council's Statement of Licensing Policy and the Government's Statutory Guidance will be available at the Sub-Committee meeting.

COMMENTS

- 12) In making their decision in respect of the application, the Sub-Committee must have regard to Statutory Guidance and the Council's own Statement of Licensing Policy as well as to the representations made and the evidence heard. However, the Sub-Committee must disregard any representations that do not relate to the promotion of the licensing objectives.
- 13) The Sub-Committee must take such of the following steps as they consider appropriate for the promotion of the licensing objectives as set out above:-
- a) Grant the application as requested; or
 - b) Modify the conditions of the licence (alter or omit conditions or add new); or
 - c) Reject the whole or part of the application.
- 14) The Sub-Committee are asked to note that they may not modify the conditions or reject the whole or part of the application merely because they consider it desirable to do so. It must actually be appropriate in order to promote the licensing objectives.

CONDITIONS

- 15) **Mandatory Conditions.** If granted, the licence would be subject to the mandatory conditions laid down in the Licensing Act 2003, (this information will be available at the Sub-Committee meeting).
- 16) **Conditions arising from applicants Operating Schedule.** In applying for a licence, the applicant is required to complete an operating schedule. This describes the steps that he proposes to take in order to promote the licensing objectives if the application is granted. These steps which are appropriate for the promotion of the licensing objectives will become conditions if the application is granted and are shown in **APPENDIX A**. However, the Sub-Committee must, having regard to the representations made, modify these conditions if it considers that such a step is appropriate for the promotion of the licensing objectives.
- 17) **Suggested conditions arising from relevant representations.** In addition to the operating schedule conditions, the Sub-Committee must, having regard to the representations made, add further conditions, if it considers that such a step is appropriate for the promotion of the licensing objectives. If the Sub-Committee are minded to do so, additional conditions may be considered.

Town Hall
Wandsworth High Street
London SW18 2PU

Paul Chadwick (Director of Resident
Services)

29 January 2026

APPENDIX A

Conditions arising from applicants Operating Schedule

Condition 1.

CCTV

1. The premises shall install, operate, and maintain a comprehensive digital colour CCTV system to the satisfaction of the Police. All public areas of the licensed premises including entry and exit points will be covered.
2. The system must record clear images permitting the identification of individuals, and in particular enable facial recognition images (a clear head and shoulder image) of every person entering and leaving in any light condition.
3. All recordings will be stored for a minimum period of 31 days with date and time stamping. Recordings will be made available immediately upon the request of an authorised officer of a responsible authority throughout the entire 31 day period.
4. The CCTV system will be capable of downloading images to a recognisable viewable format. The CCTV system will capture a minimum of 4 frames per second. The CCTV system will be fitted with security functions to prevent recordings being tampered with, i.e., be password protected.
5. The CCTV system will continually record whilst the premises are open for licensable activities and during all times when customers remain on the premises. All equipment must have a constant and accurate time and date generation.

Condition 2.

Incident log

6. An incident log shall be kept and maintained at the premises which will include a log of the following, including pertinent details:
 - i. Any incidents of disorder or of a violent or antisocial nature;
 - ii. All crimes reported to the venue, or by the venue to the police;
 - iii. All ejections of patrons;
 - iv. Any complaints received;
 - v. Seizures of drugs or offensive weapons;
 - vi. Any faults in the CCTV system;
 - vii. Any visits by a responsible authority (under the Licensing Act 2003) or emergency service.
7. Records must be completed within 24 hours of any incident, and will contain the time and date, the nature of the incident, the people involved, the action taken and details of the person responsible for the management of the premises at the time of the incident. The logs shall be kept for at least 12 months following the date of entry and be made available for inspection and copying upon request of an authorised officer of a responsible authority.

8. In the event that an incident occurs for which the police have been called, the crime scene shall be preserved to enable police to carry out a full forensic investigation.

Condition 3.

Contact numbers

9. A telephone number shall be made available and displayed in a prominent location where it can conveniently be read from the exterior of the premises by the public for local residents to contact in the case of noise-nuisance or anti-social behaviour by persons or activities associated with the premises. The telephone number will be a direct number to the management who are in control during opening hours. A record will be kept by management of all calls received, including the time, date and information of the caller, including action taken following the call. Records will be made available for inspection and copying by an authorised officer of a responsible authority throughout the trading hours of the premises.

Condition 4.

Capacity

10. The maximum number of persons (including staff) allowed at the premises shall not exceed 15.

Condition 5.

Deliveries/Waste

11. During the hours of operation of the premises, sufficient measures will be taken to remove and prevent litter and waste arising or accumulating from customers in the area immediately outside the premises.
12. No collections of waste or recycling materials (including bottles) from the premises shall take place between 23:00 hours and 07:00 hours on the following day.
13. No deliveries (in relation to licensable activities) to the premises shall take place between 23:00 hours and 07:00 hours.

Condition 8.

Alcohol restrictions

14. All alcohol on display will be in such a position so as not to be obscured from the constant view of the staff.
15. No single beers, lagers, or ciders above 6% ABV (alcohol by volume) shall be sold at the premises.

Condition 9.

Notices

16. Prominent, clear notices shall be displayed at every public entrance stating the actual operating hours of the premises.
17. The premises shall display prominent signage indicating at any point of sale that a Challenge 25 scheme is in operation.

Condition 10.

Refusals book

18. An alcohol sales refusal register shall be kept at the premises and be maintained to include details of all alcohol sales refused. The register will include:
- i. the date and time of refusal
 - ii. the reason for refusal
 - iii. details of the person refusing the sale
 - iv. description of the customer
 - v. any other relevant observations
19. The refusals register will be made available for inspection and copying on request of an authorised officer of a responsible authority. All entries must be made within 24 hours of the refusal.

Condition 12.

Delivery of alcohol

20. The Premises Licence Holder shall ensure that anyone utilised by the licence holder for the role of delivering alcohol orders ensures that the alcohol is delivered to the client who ordered the alcohol, or ensures that any 'safe place' as designated by the client where the delivery can be left must be in an area not visible to the general public and not where any minor can access the delivery. Alcohol deliveries shall only to be made to business and/or private residences and not to any public/open spaces.

Condition 13.

Staff training

21. Records of all staff training, relating to the sale or supply of alcohol (and any other age-restricted product), along with any training material used, will be kept and maintained by the Designated Premises Supervisor or the Premises Licence Holder.
22. All staff engaged in licensable activity at the premises shall receive training and information in relation to the following:
- i. The Challenge 25 scheme in operation at the premises, including the forms of identification that are acceptable.
 - ii. The hours and activities permitted by the premises licence issued under the Licensing Act 2003 and conditions attached to the licence.
 - iii. How to complete and maintain the refusal register in operation at the premises (in relation to the sale of alcohol).
 - iv. Recognising the signs of drunkenness.
 - v. The operating procedures for refusing service to any person who is drunk, under-age or appears to be under-age, or appears to be making a proxy purchase.
 - vi. Action to be taken in the event of an emergency, including reporting an incident to the emergency services.

APPENDIX B

Putney Polish Delicatessen, 379 Upper Richmond Road, London, SW15 5QJ		
PROPOSED LICENCE		
Day	SALE OF ALCOHOL for consumption off the premises	OPENING HOURS
Sunday	08.00-20.00	08.00-20.00
Monday	08.00-20.00	08.00-20.00
Tuesday	08.00-20.00	08.00-20.00
Wednesday	08.00-20.00	08.00-20.00
Thursday	08.00-20.00	08.00-20.00
Friday	08.00-20.00	08.00-20.00
Saturday	08.00-20.00	08.00-20.00